

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: May 30, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER TO CORRECT FILINGS

On April 21, 2023, Complainant filed a Motion for Confidential Treatment, along with Proposed Findings of Fact, and Appendix. On April 24, 2023, the undersigned issued an Order on Complainant's Filings, accepting Complainant MSRF, Inc.'s ("MSRF") Motion for Summary Decision as Complainant's initial brief, for the reasons stated in the Order, but did not address the Motion for Confidential Treatment. Respondent Yang Ming Transport Co. ("Yang Ming") is scheduled to file its Opposition Brief, Proposed Findings of Fact, Reply to Complainant's Proposed Findings of Fact, and Appendix on June 14, 2023.

MSRF has over-designated documents as confidential in its filings, including marking entire exhibits confidential, contrary to the instructions in the Initial Order at pages 4-5. In addition to redacting entire exhibits from the public version of its Appendix, MSRF also failed to identify what portions of its Proposed Findings of Fact and brief contained references to confidential material. Such wholesale redaction means that the public will be unable to determine if the parties' dispute is similar to one they may have. In addition, if all exhibits with the exception of one declaration and the damages table it submitted are considered confidential, the undersigned will be unable to issue a public decision that adequately addresses the facts at issue in this case.¹

On August 22, 2022, an initial order was issued which provided detailed information about filing confidential material. If confidential information was filed, a "motion justifying confidential treatment" was required which showed "*good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information.*" Initial Order at 4-5 (citing 46 C.F.R. § 502.141(j)(1)). In addition, Commission

¹ The parties are reminded that information contained in pleadings and other documents that were filed in this proceeding without a confidentiality provision cannot now be deemed confidential. Both parties should be aware of what they have already made public and may not contend that those facts are now confidential.

Rule 5 states that: “Confidential information in exhibits should be marked as specified above. If marking within the text is not feasible, individual pages may be replaced in the public version with a page indicating that confidential material is excluded. *Entire exhibits should not be excluded, only those pages containing confidential material.*” 46 C.F.R. § 502.5(a)(2)(iii) (emphasis added).

Here, MSRF failed to show good cause for the wholesale redaction of exhibits. Accordingly, MSRF’s motion for confidential treatment is **DENIED WITHOUT PREJUDICE**. The Office of the Secretary is requested to keep the documents confidential until the parties submit a revised request.

To assist the parties in how to mark confidential material, the following language has been added to initial orders (but did not appear in the August 22, 2022, order issued in this proceeding):

Confidential Request Table – It is recommended that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table may include: (1) the bates range for confidential document requests, (2) the document’s description, (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions, and (4) the legal basis for the confidentiality request. If a particular bates range in an appendix does not include any confidential information, it does not need to be listed in the confidential materials list. If a supplemental appendix is later submitted, it is recommended that a new comprehensive confidential bates list be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests).

Example: [Party Name] Appendix - Confidential Bates Table

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
RX 8-9	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

The parties are also directed to the Initial Order at page 5, paragraph 21 for further information on how to designate confidential material within a brief, motion, or proposed findings of fact and note that in this exemplar, only the numbers are confidential and redacted:

For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

MSRF should supplement its motion for confidential treatment to specifically identify the information in exhibits which it seeks to keep confidential and the basis for that request. Both parties should only request confidential treatment for the portions of exhibit pages which include confidential material. The parties are encouraged to file a table listing confidential requests by Bates number for material they contend is entitled to confidential treatment as described above; and if MSRF is able to narrow its requests, it should file a revised public version of the appendix. Both the confidential request table and the revised public appendix must be resubmitted in whole, and the new version will replace the previous version submitted.

MSRF must submit a revised confidential version of the Proposed Findings of Fact, indicating in a clear manner (such as red boxes or brackets) what is confidential information. No changes to the content of the revised filings may be made and the pagination must remain the same; only the identification of what portions contain confidential information should be revised based on the resubmitted motion for confidentiality. The cover of any material being resubmitted should also state that it is a “Revised” filing. The revised submission of the confidential and public versions of all filings must have identical pagination to the initially filed version and may not include any new text or exhibits (other than listing the filings as the “Revised” version).

MSRF’s damages table is partially illegible and should be replaced in the resubmitted Confidential Version Appendix.² The quality of the table is such that when one attempts to enlarge it, the numbers are not fully legible.

MSRF must submit its supplemental motion for confidential treatment and revised filings by June 12, 2023. These additional filings, and the confidential request lists, will also help ensure that there is clarity regarding material requested to be treated as confidential, and that no material that should be entitled to confidential treatment is inadvertently released. No changes are required at this time to MSRF’s brief. The filings that may be resubmitted include:

- Supplemental Motion for Confidential Treatment of Certain Materials
- Revised legible Public Appendix with only confidential information redacted
- Revised legible Confidential Appendix with confidential information marked
- Revised Public Proposed Findings of Fact with only confidential information redacted
- Revised Confidential Proposed Findings of Fact with confidential information marked
- Revised Confidential Request Table consistent with Supplemental Motion for Confidential Treatment of Certain Materials

Respondent is encouraged to follow the above recommendations in its submission on June 14, 2023. No extensions of time to file the remaining briefs and supporting materials will

² MSRF is reminded that the appendices should be labeled “Confidential Version” and “Public Version,” as directed in the Initial Order.

be granted to either party as the text and exhibits are not to be supplemented in MSRF's revised filings.



Linda S. Harris Crovella
Administrative Law Judge